

CHAPTER 36.

An Act to make provision with respect to the liability of pilotage authorities and others.

[16th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Limitation
of liability
of pilotage
authorities.

2 & 3 Geo. 5,
c. 31.

1.—(1) A pilotage authority (as defined in this Act) shall not, where without their actual fault or privity any loss or damage is caused to any vessel or vessels or to any goods, merchandise or other things whatsoever on board any vessel or vessels or to any other property or rights of any kind, whether on land or on water or whether fixed or moveable, be liable to damages beyond the amount of one hundred pounds multiplied by the number of pilots holding licences from the pilotage authority under section sixteen of the Pilotage Act, 1913, for the pilotage district of the pilotage authority at the date when the loss or damage occurs.

(2) Nothing in this section shall impose any liability in respect of any such loss or damage as aforesaid on any pilotage authority in any case where no such liability would have existed if this Act had not been passed.

Limitation
of liability
where several
claims
on one
occasion.

2. The limitation of liability under section one of this Act shall relate to the whole of any losses and damages which may arise upon any one distinct occasion although such losses and damages may be sustained by more than one person, and shall apply whether the liability arises at common law or under any public general or local Act of Parliament and notwithstanding anything contained in such Act.

Power of
Courts to
consolidate
claims.

3. Where any liability is alleged to have been incurred by a pilotage authority in respect of any loss or damage to which section one of this Act applies and several claims are made or apprehended in respect of that liability, then the pilotage authority may apply in England to the High Court, or in Scotland to the Court of

Session, or in Northern Ireland to the High Court of Justice in Northern Ireland, or in the Isle of Man to the High Court of Justice of the Isle of Man, and that Court may determine the amount of liability of the pilotage authority and may distribute that amount rateably among the several claimants, and may stay any proceedings pending in any other Court in relation to the same matter, and may proceed in such manner and subject to such regulations as to making persons interested parties to the proceedings, and as to the exclusion of any claimants who do not come in within a certain time, and as to requiring security from the pilotage authority, and as to payment of any costs, as the Court thinks just.

4. Where any pilotage authority are the owners of any ship, nothing in this Act shall affect any limitation of liability conferred on them or other rights to which they are entitled as such owners by or under Part VIII of the Merchant Shipping Act, 1894, and the Merchant Shipping (Liability of Shipowners and others) Act, 1900, as respectively amended by subsequent Acts, and accordingly the foregoing provisions of this Act shall not apply to any loss or damage the liability for which can be limited under the said enactments.

Act not to apply to pilotage authority as owners of ships.
57 & 58
Vict. c. 60.
63 & 64
Vict. c. 32.

5. No pilots' benefit fund, pilotage annuity fund or other fund formed or maintained by a pilotage authority for the benefit of pilots, their widows or children, shall be capable of being charged or attached or taken in execution or made available by any legal process or otherwise for meeting any liability of or any claim against the pilotage authority.

Saving for funds for benefit of pilots, &c.

6. If any body of persons corporate or unincorporate are the owners of any dock or canal (including any body of persons having the control or management of any dock or canal) or are a harbour authority or a conservancy authority and that body or a committee of that body are also a pilotage authority, then—

As to funds of authorities acting in dual capacity.

- (i) No funds, revenues, moneys or other property whatsoever belonging to such body in any capacity other than as pilotage authority shall be capable of being charged or attached or taken in execution or made available by any legal process or otherwise for meeting any liability of, or any claim against, such body or any committee

of such body in their capacity as pilotage authority; and

- (ii) No funds, revenues, moneys or other property whatsoever belonging to such body or a committee of such body in their capacity as pilotage authority shall be capable of being charged or attached or taken in execution or made available by any legal process or otherwise for meeting any liability of, or any claim against, such body in any capacity other than as pilotage authority.

As to
funds of
certain
Trinity
Houses.

7.—(1) No funds, revenues, moneys or other property whatsoever belonging to the Trinity House or the Trinity House of Newcastle-upon-Tyne, in any capacity other than as pilotage authority, shall be capable of being charged or attached or taken in execution or made available by any legal process or otherwise for meeting any liability of, or any claim against, either such body in their capacity as pilotage authority.

(2) No funds, revenues, moneys or other property whatsoever belonging to the Trinity House or any committee or sub-commissioners of the Trinity House or the Trinity House of Newcastle-upon-Tyne, in their capacity as pilotage authority, shall be capable of being charged or attached or taken in execution or made available by any legal process or otherwise for meeting any liability of, or any claim against, any such body in any capacity other than as pilotage authority.

Meaning
of pilotage
authority.

8.—(1) In this Act “pilotage authority” means a body of persons or authority incorporated, constituted or established as a pilotage authority by a Pilotage Order made under the Pilotage Act, 1913, and where any existing body of persons or authority constituted or established for other purposes and with other duties or any committee of any such existing body of persons or authority are constituted or established a pilotage authority by any such Order includes that body of persons, authority or committee.

(2) Where any body of persons or authority are incorporated, constituted or established by any such Order or Orders as the pilotage authority for more than one pilotage district, this Act shall have effect as though such body of persons or authority were a separate pilotage authority for each separate pilotage district.

9. In this Act unless the context otherwise requires— Definitions.

words and expressions to which meanings are assigned by the Merchant Shipping Act, 1894, as amended by subsequent Acts, shall have the same respective meanings; and

the expression “the Trinity House of Newcastle-upon-Tyne” means the Corporation of the Master Pilots and Seamen of the Trinity House of Newcastle-upon-Tyne.

10. This Act extends to Great Britain, Northern Ireland and the Isle of Man. Extent of Act.

11.—(1) This Act may be cited as the Pilotage Authorities (Limitation of Liability) Act, 1936, and shall be construed as one with the Pilotage Act, 1913, and the Acts amending that Act. Short title and construction.

(2) The Pilotage Act, 1913, and this Act may be cited together as the Pilotage Acts, 1913 and 1936.

CHAPTER 37.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March, one thousand nine hundred and thirty-seven, and to appropriate the Supplies granted in this Session of Parliament. [31st July 1936.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in